Notification Waiver Determination

Bain Capital – Perpetual Wealth Management Group

Acquisition	BCPE Barton BidCo Pty Ltd, a solely controlled special purpose vehicle of Bain Capital Investors LLC (**Bain Capital**), applied for a notification waiver in respect of its proposed acquisition of 100% of the share capital in Perpetual PWM Services Pty Ltd (**Perpetual Wealth Management Group**), as described in the transaction documents provided as part of the application (the **Acquisition**).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the *Competition and Consumer Act 2010* (Cth) that the Acquisition is not required to be notified.
Date of determination	30 June 2026

Parties to the Acquisition	Bain Capital is a limited liability company organised in Delaware under United States law and is the ultimate general partner of numerous private equity funds. Bain Capital, through such funds, invests in companies with activities in various industries, including technology, media and telecommunications, healthcare, retail and consumer products, financial and business services, and industrial/manufacturing. The target, Perpetual Wealth Management Group, is the wealth management division of Perpetual Limited, an Australian financial services company. Perpetual Wealth Management Group provides wealth management services including financial advice, investment management, tax management, estate management and trustee services for individuals, families, businesses and not-for-profit organisations through its Perpetual Private, Fordham and Jacaranda Financial Planning businesses. This involves philanthropy and corporate trustee services for charitable trusts. Perpetual Limited's asset management and corporate trust businesses will not transfer as part of the Acquisition.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the **ACCC**) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the *Competition and Consumer Act 2010* (Cth) (the **Act**). Based on the information provided in the application and taking into account a submission received by the ACCC from a concerned third party, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. there is no horizontal overlap between Bain Capital and Perpetual Wealth Management Group in the supply of financial advice wealth management services and corporate

	trustee services, such that the Acquisition is unlikely to materially change the competitive structure in Australia b. there is a low risk of foreclosure or other concerning vertical or conglomerate effects resulting from exclusionary conduct, bundling or tying of services post-acquisition. The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.

Determination made by a division of the Commission constituted by a direction issued pursuant to section 19 of the Act